

Court No. - 38

Case :- WRIT - C No. - 30908 of 2018

Petitioner :- Smt.Saroj Devi

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Krishna Kant Vishwakarma

Counsel for Respondent :- C.S.C.,Suman Kumar Yadav

Hon'ble Abhinava Upadhya,J.

Hon'ble Rajiv Gupta,J.

Heard Shri Krishna Kant Vishwakarma, learned counsel for the petitioner; Shri S.K. Yadav, learned counsel for the respondents no. 1 & 2 and learned Standing Counsel for the respondent no. 3.

The petitioner claims that she was eligible under 'Kutir Jyoti Yojna Programme', under which the persons below the poverty line and scheduled caste & scheduled tribes were admitted for electricity connection upto two kilowatt in the year 1997.

Learned counsel for the petitioner submits that under the said scheme the electricity charges were to be borne by the State. However, the electricity cards were issued, but no electricity connections were given although the authorities of the respondents were pressuring to pay the bill. One bill of 2003 has been filed along with writ petition for a sum of Rs. 5,461/-. It is further submitted that nothing happened thereafter although the petitioner filed an application to the authorities that no electricity connection was given, yet now a recovery citation for a sum of Rs. 68,243/- has been issued.

At this stage it is not clear as to what was the terms of the scheme under which the petitioner was admitted. That apart once the bill was issued in 2003 what did the petitioner do so long although the petitioner claims that no electricity connection was given. All these questions are questions of fact and the writ court will not go into such questions. However, the petitioner may approach the Executive Engineer under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 for redresal of her grievance.

In case the petitioners approaches the Executive Engineer by filing an application within 10 days from today, the Executive Engineer will consider the claim of the petitioner and pass appropriate order in accordance with law, as far as possible, within a period of one month from the date a certified copy of this order along with application is presented before it.

For a period of one month, no coercive action shall be taken against the petitioner pursuant to recovery citation, Annexure 7 to the writ petition.

With the aforesaid directions, the writ petition is disposed of.

Order Date :- 12.9.2018

Sunil Kr. Gupta

(Rajiv Gupta, J.) (Abhinava Upadhya, J.)